

February 17, 2012



U.S. Department
of Transportation

East Building, PHH-30
1200 New Jersey Avenue S.E.
Washington, D.C. 20590

**Pipeline and Hazardous
Materials Safety Administration**

DOT-SP 15532

EXPIRATION DATE: August 31, 2012

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: SET Environmental Inc.
Wheeling, IL
2. PURPOSE AND LIMITATION:
 - a. This special permit authorizes the one-time, one-way transportation in commerce for disposal a non-DOT specification, irregularly shaped, sodium dispersion vessel in alternative outer packaging. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein. The most recent revision supersedes all previous revisions.
 - b. The safety analyses performed in the development of this special permit only considered the hazards and risks associated with the transportation in commerce.
 - c. No party status will be granted to this special permit.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 173.244 in that a non-DOT specification packaging is not authorized, except as provided herein.
5. BASIS: This special permit is based on the application of SET Environmental Inc. dated December 20, 2011 submitted in accordance with § 107.105 and the public proceeding thereon.

February 17, 20126. HAZARDOUS MATERIALS (49 CFR § 172.101):

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Sodium	4.3	UN1428	I

7. SAFETY CONTROL MEASURES:a. PACKAGING -

(1) The packaging is a non-DOT specification containment vessel, weighing 2000 lbs., constructed of minimum 3/8 inch steel. The vessel is irregular in shape and is flange and bolted closed.

(2) The vessel must be filled with oil, closed, and placed within a device to provide secondary containment. The outer packaging is a 600 gallon bin complying with Environmental Protection Agency Regulations 40 CFR § 761.65.

(i) All closure devices must be inspected after filling with oil to check for leaks.

(ii) Each vessel must be braced within the containment device to secure against movement and prevent damage to the vessel.

(iii) Each outer packaging must be braced within the motor vehicle to secure against movement and prevent damage to the outer packaging and vessel.

b. OPERATIONAL CONTROLS -

(1) This special permit authorized the one-time, one-way transportation of a sodium vessel described above by means of motor vehicle. The shipment will originate in Indianapolis, IA to a SET Environmental, Inc. disposal facility in Houston, TX.

(2) The motor vehicle must have team drivers in order to eliminate unnecessary stops.

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(3) The drivers of the motor vehicle must be specifically trained in the hazards associated with the hazardous materials being transported and be knowledgeable in the appropriate emergency response procedures.

(4) The drivers of the motor vehicle must have the capability to contact the appropriate emergency response organizations in the event of an accident or an emergency involving the hazardous materials being transported.

(5) No other hazardous material(s) may be transported onboard the vehicle.

8. SPECIAL PROVISIONS:

a. A person who is not a holder of this special permit who receives a package covered by this special permit may reoffer it for transportation provided no modification or change is made to the package and it is reoffered for transportation in conformance with this special permit and the HMR.

b. A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.

c. The package must be plainly and durably marked "DOT-SP 15532" as specified in §§ 172.301(c) and 172.302(c).

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle.

10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard the motor vehicle used to transport packages covered by this special permit.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.

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- o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
- o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)—"The Hazardous Materials Safety and Security Reauthorization Act of 2005" (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term "exemption" to "special permit" and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 Immediate notice of certain hazardous materials incidents, and 171.16 Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for Dr. Magdy El-Sibaie
Associate Administrator for Hazardous Materials Safety

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Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Material Safety Administration, U.S. Department of Transportation, East Building PHH-30, 1200 New Jersey Avenue, Southeast, Washington, D.C. 20590.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at http://hazmat.dot.gov/sp_app/special_permits/spec_perm_index.htm. Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: MAJORS:BURKHARDT